

		(<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail, after confirming within the last 30 days that the address is the client's current address. Counsel also has declared a justifiable reason to be relieved as counsel — the breakdown of the attorney-client relationship and a material breach of the retainer agreement. In addition, there are no substantive hearings on calendar and trial is not set until February 1, 2027. (See ROA #73.) Thus, given that the trial will not commence for 8 months, Plaintiff Miguel A. Navarro will have sufficient time to find new counsel and will not be unduly prejudiced in his ability to prepare for and try the case. Further, no opposition has been filed setting forth prejudice to Plaintiff Miguel A. Navarro or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. Counsel shall give notice of this ruling in the manner ordered by the court.
6	Four Aces Remodeling, LLC vs. Always in Motion, LLC 30-2024-01449453	<u>Motion to Be Relieved as Counsel</u> Counsel Zachary McCready's Motion to Be Relieved as Counsel for Plaintiff Four Aces Remodeling, LLC is GRANTED. Counsel Zachary McCready ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly completed and includes all upcoming hearing dates and the trial date, within 10 days of this ruling.

		Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Zachary McCready is ORDERED to serve Plaintiff Four Aces Remodeling, LLC with the signed Form MC-053, notice of the Order to Show Cause hearing set forth below, and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel Zachary McCready shall be relieved as counsel of record for Plaintiff Four Aces Remodeling, LLC effective upon the filing of a proof of service showing timely service of the signed Form MC-053, notice of the Order to Show Cause hearing, and notice of this ruling. The Court SETS a hearing on an Order to Show Cause re: Striking the Answer to the Amended Cross-Complaint for Failure to Retain Counsel on August 26, 2026 at 10:00 am in Department N15. Counsel Zachary McCready remains and shall continue to act as counsel of record for Plaintiff Four Aces Remodeling, LLC. <u>Pending Motion</u> Counsel Zachary McCready (Counsel) moves to be relieved as counsel for Plaintiff Four Aces Remodeling, LLC. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be</i>
--	--	---

		<i>Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>) If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by
--	--	---

		good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, “a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e).” (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in “undue prejudice to the client’s interests,” (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or “an unreasonable disruption of the orderly processes of justice,” (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney’s request to withdraw “where such withdrawal would work an injustice or cause undue delay in the proceeding”. (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail, after confirming within the last 30 days that the address is the client’s current address. Counsel also has declared a justifiable reason to be relieved as counsel — the breakdown of the attorney-client relationship and the client’s failure to fulfill agreed upon financial obligations for legal services. The court previously continued the hearing on this motion because other motions had hearings that were imminent. The hearings on those other motions have now been conducted. The only substantive hearings that affect Plaintiff Four Aces Remodeling, LLC are the hearing on the motion to expunge the mechanic’s lien, which is set to be heard September 28, 2026, and the trial in this action, which is set for October 26, 2026.
--	--	---

		Thus, Plaintiff Four Aces Remodeling, LLC will have sufficient time to find new counsel and will not be unduly prejudiced in its ability to prepare for and try the case. Further, the court will entertain motions to continue the trial if necessary to avoid prejudice to Plaintiff Four Aces Remodeling. In any case, no opposition has been filed setting forth prejudice to Plaintiff Four Aces Remodeling, LLC or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. However, Plaintiff Four Aces Remodeling, LLC is a limited liability company or other artificial legal entity that cannot represent itself and must retain counsel to act on its behalf in court. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 fn.5; <i>Rogers v. Sonoma County Municipal Court</i> (1988) 197 Cal.App.3d 1314, 1318.) While the ban on self-represented artificial legal entities does not prevent the court from granting the motion to withdraw, it does place pressure on Plaintiff Four Aces Remodeling, LLC to obtain new counsel or risk forfeiting important rights through non-representation, such as striking of its answer to the amended cross-complaint and entering default against it. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318; <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.) Therefore, it is incumbent upon the court and Counsel to advise the Plaintiff Four Aces Remodeling, LLC or the representatives of Plaintiff Four Aces Remodeling, LLC of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318.) The court will issue an Order to Show Cause re: Striking the Answer to the Amended Cross-Complaint for Failure to Retain Counsel, and will order that Counsel serve Plaintiff Four Aces Remodeling, LLC with the order relieving counsel,
--	--	--

		notice of the order to show cause, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
7	Bello vs. Thapa 30-2025-01514784	<u>Motion for Leave to Amend</u> Plaintiff Rigoberto Perez Bello's Motion for Leave to File First Amended Complaint is GRANTED. Plaintiffs Rigoberto Perez Bello and Patricia Grace shall file and serve the First Amended Complaint – Personal Injury, Property Damages, Wrongful Death, attached as Exhibit A to the Declaration of Dmitri N. Chtyrev, Esq. in Support of Motion for Leave to File First Amended Complaint, within 30 days of this ruling. <u>Pending Motion</u> Plaintiff Rigoberto Perez Bello moves for leave to file the First Amended Complaint – Personal Injury, Property Damages, Wrongful Death (First Amended Complaint). <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish